TERMS AND CONDITIONS

Terms and Conditions

The Cardy Group Inc. is acting as agent on behalf of its client and all invoices/accounts are to be forwarded to the client or as otherwise designated. The Cardy Group Inc. is acting as agent only and assumes no responsibility or liability for the payment of goods or services ordered hereby.

This purchase order and the terms herein supersede any other document with respect to the goods or services ordered hereby. No subsequent Invoice or document shall affect or vary the terms hereof unless expressly acknowledged and signed by a responsible officer of The Cardy Group Inc.

DEFINITIONS

The term 'Purchaser" means the person, firm or corporation taking title of goods or services.
The term 'Seller" means the person, firm or corporation to whom this order is directed or that has accepted this order.

CONTRACT

This form, when properly signed, is the only form that will be recognized by the Purchaser as authority for charging goods or services to the account of the agent's client and it is understood and agreed that there is no oral understanding or agreement between Purchaser and Seller other than the conditions stated in this order, or any subsequent Change Notices. This form supersedes all previous communications and negotiations and constitutes the entire agreement between the parties. No qualifying terms stated by the Seller in acceptance or acknowledging this order shall be binding upon the Purchaser unless accepted in writing by the Purchaser. The Seller may not assign this order without Purchaser's prior written consent.

DELIVERY

It is understood and agreed that promptness of delivery of materials and execution of work as specified herein is the essence of this order. By delivery shall be understood delivery at Purchaser's client or other delivery points specified on the Purchaser Order. I! is understood and agreed that acknowledgement of the receipt of goods or acknowledgement of the performance of certain works by or on behalf of the Purchaser shall not constitute final acceptance thereof which shall be subject to the condition that the goods and services may be rejected or returned in whole or in part if not in accordance with the requirements as to quality, quantity, weight, measurement or other provisions of this contract.
It is understood and agreed that if the Seller's deliveries are so far behind the given schedule that the Purchaser finds it necessary to call upon the Seller to make shipments by any other routing than that previously agreed upon. Seller will allow Purchaser the difference between the cost of the previously agreed routing and the emergency routing. It is understood and agreed that if Seller's deliveries as specified by the Purchaser, after request to the Seller are so far behind the given schedule that the Purchaser is compelled to use material not according to Purchaser's specifications, the Seller will pay whatever additional costs, expense, losses or damages the Purchaser may sustain.

QUALITY

The Seller warrants that all goods or services supplied will conform to the description in this order and all other applicable specifications be of good merchantable quality and be fit for the purpose for which purchased. This warrant is in addition to any standard warranties or service guarantee given by the Seller to the Purchaser.

SHIPMENT

A notice of shipment shall be sent to the Purchaser at the time of shipment and shall state the number of this order, description of, and the quantity of the merchandise and the route by which the shipment is being made. Purchaser will allow no charges for boxing or crating unless previously agreed upon with Seller in writing. Purchaser will not accept material or invoice unless it is marked with Purchaser's order number. All merchandise shall be suitably packed, marked and shipped in accordance with the shipping directions hereof. The Seller shall be liable for all freight charges to the F.O.B. point specified. The Seller shall also be liable for any difference in freight charges arising from its failure to (a) follow the shipping instructions specified herein or (b) properly describe a shipment. The Purchaser and Seller mutually agree to assist each other in obtaining documents and other information necessary for the prosecution of claims against carriers.

INVOICES

Invoices must show the name of the plant to which the merchandise was or is to be delivered or shipped. If there is any sales, use, duty, excise or other tax or charge applicable to this order for which the Purchaser has not furnished or agreed to furnish an exemption certificate then the amount and kind of any such sale, use, duty, excise or other tax or charge shall be stated separately on the invoice. The Purchaser shall calculate settlement of prompt payment discounts from date of receipt of goods in satisfactory condition or date of receipt of goods invoiced whichever is the later.

INSPECTION

It is understood and agreed that final delivery and acceptance is at Purchaser's plant or any other location designated by the Purchaser and any previous inspection is purely of a preliminary nature and does not constitute final acceptance. Detective material, as and when so determined by the Purchaser, will be returned and debited to the Seller at his original billing price per unit for the number of units returned plus freight and cartage thereon: a similar deduction shall be made for all defective workmanship, as and when so determined by the Purchaser. The amount so charged to the Seller shall be deducted from any and all accounts which may be due. The Seller by virtue of this or any other purchase order given the Seller by the Purchaser, and any assignee under any specific or general assignment of accounts covering the value of the merchandise to be produced by this or any other purchase order given by the Purchaser to the Seller will likewise be bound by these conditions, and it is, among others on this express understanding that this purchase order is given to the Seller by the Purchaser. Where the amount charged to the Seller in accordance with the foregoing stipulations exceeds the amount which at such time may be owing by the Purchaser to the Seller the latter shall reimburse the Purchaser and the same may at the option of the Purchaser be demanded from any person or persons to whom the supplier might have made a specific or general assignment or accounts with respect to this or any other purchase order given to the Seller by the Purchaser, and this notwithstanding any payment which may meanwhile have been made to such person or persons.
No sum or money shall be due or owed to the Seller unless the material and services supplied by him to the Purchaser have been finally accepted. However, said exception shall not stop the Purchaser from exercising all its rights if the material supplied or workmanship is faulty.
It is understood and agreed that the Seller will indemnify and hold harmless the Purchaser against any and all liabilities whatsoever for damages and/or injuries which may be incurred by
The Purchaser by virtue of defective material or workmanship in the articles, materials or services supplied hereunder.
Parts or services found defective upon inspection will either be returned to the seller under the stipulations of the foregoing paragraph or in cases of emergency, repaired by The Purchaser
at the Seller's expense.
Articles, material and services furnished under this purchase order shall be of a grade and quality satisfactory to the Purchaser for his purpose. In the event articles, materials and services
furnished are not of such a grade or of such a quality that Purchaser is compelled to use articles or materials not according to Purchaser's specifications, or to have work done or repaired
by another contractor, the Seller will pay whatever additional costs, expenses, losses or damages the Purchaser may sustain in consequence thereof.
It is understood and agreed that the Purchaser shall not be liable for any material, either raw or processed provided by the Seller in excess or written releases.

The Seller agrees to indemnify the Purchaser against and from all suits or actions arising from the claim of any person or person who are, or who claim to be, patentees of any process used in connection with the work or materials in this order.

CANCELLATION

The Purchaser reserves the right to cancel this purchase order if the delivery schedule or execution date mentioned herein is not met by the Seller, this without payment of any cancellation charges, nor debt charges, consequential or others, of any kind or nature.
In the event that anyone or more of the following conditions exists or shall exist during the term of this order, the Purchaser shall forthwith have the unrestricted right to cancel and terminate this order or any part thereof without recourse by or compensation to the Seller.
1. Seller's insolvency or commission of an act of bankruptcy.
2. Filing of voluntary or involuntary petition of bankruptcy by or against the Seller.
3. Institution of legal proceedings against Seller by creditors or stockholders.
4. Appointment of a receiver for Seller by any court of competent jurisdiction.
5. If, at any time, in the sole findings of the Purchaser, Seller's industrial activities shall be such as to endanger its performance herewith.
6. Excessive scrap, spoilage or rejects of materials supplied by the Seller to negligence, any deficiency or lack of proper machining facilities or personnel.
The acceptance of goods or performance after any of the above conditions have been proven shall not affect the right of the Purchaser to exercise its right of cancellation and termination as set out here and above.
It is understood and agreed that this order is subject to modification or cancellation by the Purchaser in the event of fire, accident, strikes, government acts, or other events which may justify the Purchaser taking such action. .
In the case of any of these circumstances occurring the price to be paid to the Seller for goods or work completed or in process shall be mutually agreed upon by both the Seller and the
Purchaser, and subject to all the other terms and conditions of the purchase order.

RISK OF LOSS

The risk of loss, damages, spoilage and deterioration and all other risks shall not be passed to the Purchaser until it has actually inspected and accepted the goods.

ACCEPTANCE

This contract shall be deemed to have been entered into at the location as indicated by the 'invoice to address" so noted on the terms and conditions attached to this purchase order.
This contract is binding upon the parties thereto, their successors, assigns or legal representatives.
It is understood and agreed that any work done or delivery made in accordance with this order constitutes an acceptance of the foregoing conditions.